

alternative date, the Court intends to set the matter on **Monday, March 22, 2027, at 8:30 a.m. in Department 64** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, any uncashed monies were distributed to the California Controller's Unclaimed Property Fund, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than March 15, 2027.

JANE MJ DOE VS. SABET, MD, ET AL.

CASE NUMBER: 23CV-0203865

Tentative Ruling on Motion to Enter Judgment: Plaintiff moves for entry of judgment pursuant to Code of Civil Procedure section 664.6. The parties settled this matter at the Mandatory Settlement Conference held May 4, 2026. The Settlement Agreement was executed June 4, 2026. Defendant has made a partial payment under the terms of the Agreement and has failed to timely make the remaining payment. The Motion has been properly noticed and is unopposed.

Merits: CCP § 664.6(a) provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.

Here, the parties stipulated to settlement orally before the court on May 4, 2026. Thereafter, the settlement was reduced to writing and signed by the parties on June 4, 2026. The signed writing is attached as Exhibit 2 to the Declaration of Steward Altemus. As of the August 21, 2026 filing of this Motion, a partial payment has been made. Plaintiff granted a 30 day extension to the payment due date, but Defendant has not timely paid the remaining balance. Plaintiff is entitled to entry of judgment on the terms of the Settlement Agreement for the outstanding balance plus interest.

The motion is **GRANTED**. The proposed order and judgment will be executed.

LUCERO VS. ADAMS

CASE NUMBER: 26CV-0211131

Tentative Ruling on Demurrer: Defendant Daniel Adams, individually and dba Daniel Adams Construction demurs to Plaintiff Dolores Lucero's Complaint pursuant to Code of Civil Procedure section 430.10(e) on the grounds that it is barred by res judicata. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Daniel Adams establishes compliance with the meet and confer requirements.

Request for Judicial Notice: Defendant's requests that the Court take judicial notice of the following is GRANTED, Pursuant to Evidence Code 452(d).

1. Ruling dated July 10, 2024 and Notice of Entry of Judgment filed July 12, 2024 in Small Claims matter of *Lucero v. Adams*, Shasta County Superior Court Case NO. 24CL-00078.
2. Notice of Entry of Judgment – Small Claims Appeal dated August 26, 2024 in *Lucero v. Adams*.
3. Order denying Motion to Vacate Judgment dated September 17, 2024.

4. Order dated October 10, 2024.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Here, Defendant demurs on the grounds that res judicata bars the action. “Claim preclusion, often referred to as res judicata, provides that a valid, final judgment on the merits precludes parties or their privies from relitigating the same ‘cause of action’ in a subsequent suit. ... With respect to claim preclusion (res judicata), three requirements must be met. First, the second lawsuit must involve the same ‘cause of action’ as the first lawsuit. Second, there must have been a final judgment on the merits in the prior litigation. Third, the parties in the second lawsuit must be the same (or in privity with) the parties to the first lawsuit.” *City of Oakland v. Oakland Police & Fire Retirement System* (2014) 224 Cal.App.4th 210, 227-228 (internal citations omitted).

Whether two lawsuits are based on the same cause of action is determined in California by reference to the primary right theory. Under this theory, a “cause of action” is comprised of a primary right possessed by the plaintiff, a corresponding duty imposed upon the defendant, and a wrong done by the defendant which is a breach of such primary right and duty. The primary right is the plaintiff’s right to be free of the particular injury, regardless of the legal theory on which liability is premised or the remedy which is sought. Thus, it is the harm suffered that is the significant factor in defining the primary right at issue. *Ibid.* Res judicata applies to judgments rendered by the small claims court. *Allstate Ins. Co. v. Mel Rapton, Inc.* (2000) 77 Cal.App.4th 901.

Plaintiff’s Complaint alleges breach of oral contract, negligence, and related causes of action arising out of a residential construction project. The Complaint alleges defective work resulting in water intrusion. Plaintiff’s prior small claims action has already fully adjudicated this cause of action. The primary right here is the same. The Court’s July 10, 2024 Judgment entered in Shasta County Superior Court Case No. 24CL-00078, *Lucero v. Adams*, concerned the same construction project, between the same parties, with a final judgment entered on the merits. Plaintiff’s Opposition brief argues that the water intrusion she observed on December 28, 2024 after the small claims matter concluded, confers a new cause of action or primary right. It does not. New or continuing damages arising from the same allegedly defective work is not grounds for relitigating Plaintiff’s injury and Defendant’s duty. The harm suffered (defective construction work), although it is alleged to be continuing, or occurring after the resolution of the small claims matter, does not state facts sufficient to constitute a new cause of action.

Defendant’s demurrer is **SUSTAINED** without leave to amend on the grounds of res judicata. No proposed order was submitted as required by Local Rule 5.17(D). Defendant shall prepare the order.